

Explanatory Note: Order Drafting Without Participation

Purpose of this note

This note explains the **context and significance** of material changes introduced during the post-judgment drafting of the final order, as identified in the **Final Order Change Log** and the **Participation Context Timeline**.

It does not advance new allegations or legal conclusions and is provided to assist understanding of **how and when** those changes occurred.

The post-judgment drafting phase

Following the conclusion of the trial on **28 February 2024**, the proceedings entered a post-judgment phase in which the parties were expected to agree the wording of the final order. During this period, the Claimant was a litigant in person and sought assistance from the court to remain on an equal footing, including through enforcement of Maintenance Pending Suit (MPS) and participation support.

The drafting process proceeded while the Claimant repeatedly communicated that she was unable to engage effectively due to the loss of subsistence, loss of legal representation, and deteriorating mental health. These difficulties were communicated to the court contemporaneously.

Nature of the changes introduced

On **14 May 2024**, a further draft of the final order introduced **substantive changes** to core financial provisions, including:

- a restructuring of pension provision, including the first notification that certain pensions were said to be incapable of sharing under an English pension sharing order;
- a change to the governance of the children's education fund, introducing sole conduct by the respondent; and
- a new provision remitting arrears of Maintenance Pending Suit.

These were not drafting corrections or typographical amendments. They altered the **substance and legal effect** of financial arrangements that had been central to the proceedings.

First notification regarding pension sharing

The 14 May 2024 draft was the **first occasion in approximately five years of litigation** on which the Claimant was informed that the pensions were said to be incapable of being shared under a pension sharing order. This was a material development that would ordinarily require explanation, legal advice, and an opportunity to make informed representations.

No separate hearing was convened to address this issue, and no mechanism was provided within the drafting process to enable the Claimant to engage meaningfully with the change.

Participation and capacity to engage

At the time these changes were introduced, the Claimant had made clear that she was unable to participate effectively in the drafting process. The inability to engage was not a matter of preference or non-cooperation, but was consistently linked to:

- the non-enforcement of MPS;

- the resulting loss of subsistence and legal representation; and
- an acute mental health crisis that had been communicated to the court.

The drafting process nonetheless continued, and the changes introduced on 14 May 2024 were carried through into the sealed final order and later slip-rule approval.

Relationship to the Change Log and Timeline

This note should be read alongside:

- the **Final Order Change Log**, which sets out the precise before-and-after positions for pensions, the children’s education fund, and MPS; and
- the **Participation Context Timeline**, which records the contemporaneous circumstances affecting participation between February and June 2024.

Together, these documents explain **why material changes to the final order were introduced during a period when the Claimant was unable to participate**, and why those changes were not the product of an agreed or participatory drafting process.